ASSEMBLIES OF GOD
versus
ASSEMBLIES OF GOD SPIRITUAL MOVEMENT
and
LUCKMORE ZINYAMA
and
PHILIP ZINYAMA
and
DAVID MAKWINDI
and
MUNICIPALITY OF MARONDERA

HIGH COURT OF ZIMBABWE
**DEME J**
HARARE, 21 May 2026 and 9 June 2026.

***Exception***

*B Magogo* for the Plaintiff
*L Majogo* for the 1st - 4th Defendants
No appearance for the 5th Defendant.

DEME J: The Plaintiff instituted a claim against the Defendants claiming:

> "1. An order that the Agreement of Sale entered into by and between "Extension of Church Assemblies of God" as represented by the second Defendant and the fifth Defendant in respect of a church property at Number 2666 Corner Bimha and Mbira Street, Rujeko Township, Marondera, dated 1sixth August 2023, be declared null and void.
>
> 2. An order that the fifth Defendant cancel and annul the Agreement dated 1sixth August 2023, entered into between Extension of Church Assemblies of God (represented by the second Defendant) and the fifth Defendant, regarding the church property at Number 2666, Corner Bimha and Mbira Street, Rujeko Township, Marondera, and reregister the Agreement for the extension only in the name of the Plaintiff, as represented by its duly appointed representative.
> 3. An order for the eviction of the first, second, third, and fourth Defendants, and all persons occupying through them, from the church property located at Number 2666, Corner of Bimha and Mbira Streets, Rujeko Township, Marondera.
> 4. Costs of suit on the Legal Practitioner-Client scale to be borne by the first, second, third and fourth Defendants, jointly and severally, the one paying the others to be absolved."

It was alleged by the Plaintiff that the fifth Defendant allocated to the Plaintiff the property known as Number 2666, Corner Bimha and Mbira Street, Rujeko Township, Marondera, (hereinafter called "the property"). According to the Plaintiff this allocation took place around 1978 -1980. The Plaintiff averred that it constructed a church building together with other ancillary structures at the property. The second-fourth Defendants are former members of the Plaintiff according to the Plaintiff.

The Plaintiff also claimed that on 10 April 2007, it applied to the fifth Defendant for an extension of the property to incorporate the adjacent piece of land measuring approximately 216 square metres. According to the Plaintiff, it later purchased the land on 9 September 2008 upon an offer by the fifth Defendant. It was further maintained by the Plaintiff that the second Defendant represented the Plaintiff in the transaction.

The Plaintiff additionally stated that the second, third and fourth Defendants ceased to be members of the Plaintiff around 2020-2021. The second-fourth Defendants formed their church organization in the form of the first Defendant according to the Plaintiff

It was further alleged that the second Defendant, in 2023, acting in common purpose with the third and fourth Defendants, misled the fifth Defendant into concluding an agreement of sale in respect of the land measuring approximately 216 square metres. In the transaction, the second Defendant represented the purchaser identified as The Extension of Church Assemblies of God. It was contended by the Plaintiff that The Extension of Church Assemblies of God is a non-existent entity. In terms of the agreement, The extension of Church Assemblies of God purchased the land measuring roughly 216 square metres together with the buildings thereat.

It is the opinion of the Plaintiff that the agreement concluded by the fifth Defendant and The Extension of Church Assemblies represented by the second Defendant must be nullified by this court. Further the Plaintiff seeks the relief that the court must make an order that the fifth Defendant and the Plaintiff must enter into a separate agreement thereby replacing the nullified agreement.

The first-fourth Defendants (hereinafter called "the Defendants") are in occupation of the property. The Plaintiff is of the view that the first-fourth Defendants have no right to occupy the

property having seceded from the Plaintiff. On this basis, the Plaintiff holds the view that they ought to be ejected from the premises.

The first-fourth Defendants excepted to the summons and declaration. According to the first-fourth Defendants, the summons and declaration do not disclose a valid cause of action in many respects. The Defendants argued that the Plaintiff, being an alien to the 2023 agreement cannot seek to challenge such agreement. According to the Defendants, it is embarrassing that they have been dragged to the court where the interested party namely The Extension of Church Assemblies of God is not before the court. The Defendants wonder why they have been brought to court for a 2023 agreement which was concluded after their alleged secession from the Plaintiff in 2021.

The Defendants also insisted that the date of allocation of the property remains a mystery. According to the Defendants, the Plaintiff ought to have pleaded the specific date of the allocation of the property instead of 1978-1980. The Defendants averred that the Plaintiff ought to have verified the date of the alleged allocation from the relevant documentation. On this basis, the Defendants argued that the Plaintiff's failure to plead the specific date for the allocation makes the pleadings vague and embarrassing.

The Defendants further contended that the Plaintiff's claim of "exclusive rights, title, and interests to occupy and possess the church property" is vague, embarrassing and contradictory. According to the Defendants, the Plaintiff claims to have purchased the property while in certain instances it claims to own the property. The Defendants further alleged that the Plaintiff in case number RHCH5359/23, the Plaintiff initially claimed to have the lease agreement with the fifth Defendant before shifting its position and claimed that it concluded an agreement of sale with the fifth Defendant in respect of the property. This matter was subsequently withdrawn by the Plaintiff. The Defendants urged the court to refer to its record. Such contradictory positions, according to the Defendants, will prejudice the Defendants. They insisted that they will not be able to plead properly without the knowledge of the Plaintiffs nature of rights claimed in the property.

The Defendants also maintained that the second-fourth Defendants have been improperly dragged to the court as they were allegedly representing The Extension of Church Assemblies of

God. According to the Defendants, the alleged arrangement can only make the second and-fourth Defendants purely agents of The Extension of Church Assemblies of God. On that basis, the Defendants hold the view that they ought not to be before the court.

According to the Defendants, the claim for re-registration of the agreement after its nullification is unsustainable. The Defendants argued that once the agreement has been nullified, it cannot be resuscitated. The Defendants also averred that the claim for eviction is untenable on the basis that the Plaintiff's rights in respect of the property are unclear. Consequently, the Defendants prayed for the upholding of the exception.

Replicating to the exception, the Plaintiff insisted that the summons and declaration do disclose a valid cause of action. According to the Plaintiff, its claim for a declarator and consequential relief for eviction of the Defendants is sustainable at law.

The Plaintiff maintained that the fact that The Extension of Church Assemblies of God is an unknown entity cannot preclude the Plaintiff from seeking the relief for the nullification of the agreement which was wrongfully and unlawfully concluded between the fifth Defendant and such entity. The Plaintiff further alleged that the claim for eviction is also sustainable as the Defendants are in occupation of the property without the authority of the Plaintiff. The Plaintiff is of the view that its failure to cite the Extension of Church Assemblies of God is inconsequential as such entity is non-existent in law or in fact. According to the Plaintiff, non-joinder of a party cannot invalidate proceedings before the court. Reference was made to Rule 32.

Responding to the date of allocation, the Plaintiff argued that the Defendants are not prejudiced by such date. It further contended that such issue cannot be a ground for exception. On the question of exclusive rights in respect of the property, the Plaintiff insisted that such issue can be better addressed by request for further particulars instead of exception. Reference was made to Rule 42(1)(d). It is the Plaintiff's position that reference to the matter which was withdrawn is of no consequence.

The Plaintiff claimed that the claim for re-registration of the agreement into the Plaintiff's name is sustainable as there is nothing which may prevent this from happening. In the circumstances, the Plaintiff prayed for the dismissal of the exception.

What remains to be determined is whether the exception may be upheld.

Exception is a procedure adopted by a litigant who is of the view that the pleadings before the court are vague and embarrassing or lack averments necessary to sustain an action or defence. According to Rule 42(1)(b), a litigant faced with vague and embarrassing pleadings may:

> "except to the pleading or to single paragraphs thereof if they embody separate causes of action or defence as the case may be where the pleading is vague and embarrassing or lacks averments which are necessary to sustain an action or defence, as the case may be".

Our courts have established the purpose of exception. Exception is a speedy remedy available to a litigant seeking to challenge the Plaintiff's claim or defence based on a point of law. Reference is made to the case of *City of Harare* v *D and P Investments (Pvt) Ltd and Another*[1] where the court remarked as follows:

> "An exception is an answer to the plaintiff's claim or to the defence claimed. Its main purpose is to obtain a speedy decision upon a point of law apparent on the face of the pleading attacked and to settle the dispute in the most economical manner by having the faulty pleading set aside."

The summons and the Plaintiff's declaration must contain a true and concise statement of the nature, extent and grounds of the cause of action and of the relief or remedies sought in the action. Reference is made to Rules 12(5)(d) and 13(1)(e). If the Plaintiff fails to outline its cause of action with sufficient particularity, it may invite grounds of exception from the opposite party.

On the day of hearing of this matter, Mr. Majogo sought to introduce a new dimension to the exception. He argued that the Plaintiff, despite alleging fraud, did not properly plead fraud. Reference was made to Paragraph 7.7 of the Plaintiff's declaration. Mr. Majogo referred the court to the case of *Chimwanengara* v *The Sheriff of High Court of Zimbabwe and Anor* [2]Where the court held that:

> "On a proper application of what constitutes a cause of action in relation to this case clearly nothing has been set out by the plaintiff. If the plaintiff intended to rely on fraud or negligence this remained in the air, for no particulars were set out to ground the claim."

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[1] 1992 (2) ZLR 254 at D – E
[2] HH487/18.

I interrogated Mr. Majogo whether the issue of fraud was raised in the exception. He argued that fraud was indirectly raised. Mr. Magogo argued that the issue of improper pleading of fraud was raised for the first time during the proceedings

Rule 42(3) provides that a party seeking to except to the pleadings must give notice through the letter. In particular, Rule 42(3) provides that:

> "Before filing any exception to a pleading or making a court application to strike out any portion of a pleading on any grounds, the party complaining of any pleading shall, within the time allowed for filing a subsequent pleading, by written letter to his or her opponent state the nature of his or her complaint and call upon the other party to remove the cause of the complaint within twelve days of the complaint."

A perusal of the letter addressed to the Plaintiff's legal practitioners clearly reflects that it does not contain the issue of fraud. Further, in terms of Rule 42(6) the grounds for exception must be clearly articulated. Rule 42(6) provides as follows:

> "Wherever an exception or plea in bar or abatement is taken to any pleading the grounds upon which it is founded shall be clearly and concisely stated and a party shall state all his or her exceptions, special pleas and make all his or her applications to strike out at one time."

The excipients cannot seek to introduce a new ground for exception on the day of hearing. The grounds for exception must be raised at once according to Rule 42(6). The excipients cannot seek to amend their grounds at each available opportunity. This is untenable. The opposite party will be prejudiced by such approach. On this basis, the new ground for exception is hereby struck off having been improperly raised.

In their first written ground of exception, the Defendants argued that the Plaintiff cannot seek to nullify the agreement concluded between the fifth Defendant and The Extension of Church Assemblies of God on the basis that the Plaintiff was never a party to such agreement. In my view, an order for nullification of the agreement must be distinguished from the relief for cancellation of the agreement. Nullification of agreement is a remedy available even to persons who are not privy to the agreement based on the availability of evidence. Cancellation of the agreement is not available as a remedy to a person who is not privy to the agreement. The

Plaintiff is seeking a declarator before this court seeking the nullification of the agreement. A declarator is provided in terms of Section 14 of the High Court Act which reads as follows:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

The requirements for the declarator have been established in the case of *Johnson* v *Afc*[3], where GUBBAY CJ, as he then was, commented as follows:

> "The condition precedent to the grant of a declaratory order under s 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an "interested person", in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated thereto… At the second stage of the enquiry, the court is obliged to decide whether the case before it is a proper one for the exercise of its discretion under s 14 of the Act. It must take account of all the circumstances of the matter."

Mr. Magogo argued that the issues raised on this ground for exception are issues which will be addressed by Plaintiff's evidence at the appropriate time. I agree with the submission on this aspect. Whether or not the Plaintiff's claim meets the essential requirements of a declarator for the nullification of the agreement will be determined at the appropriate moment. It is competent for the Plaintiff to seek such a remedy subject to availability of evidence.

In their second ground of exception, the Defendants argued that the Plaintiff's failure to plead the specific date of the allocation of the property will prejudice them. They argued that the date of allocation of the property can be ascertained from the relevant document. In my view, a date with such a wide range from 1978-1980 is vague and embarrassing given that such date is readily ascertainable from the appropriate documents. The Defendants must be in a clear picture of the exact date of allocation for them to prepare their defence. I disagree with the Plaintiff's submission to the effect that the issue of date will not prejudice the Defendants. On this basis, this ground for exception is sustainable.

In their third ground of exception, the Defendants contended that the Plaintiff's reference to "exclusive rights, title, and interests to occupy and possess the church property" is vague and embarrassing. Mr. Majogo argued that Paragraph 7.2 of the declaration which refers to the

[3] 1995 (1) ZLR 65 (S) at p 72E.

exclusive rights is not consistent with Paragraph 8.5 of the declaration. Paragraph 7.2 of the declaration reads as follows:

> **"**It currently holds exclusive rights, title and interests to occupy and possess the church property located at Number 2666, Corner Bimha and Mbira Street, Rujeko Township, Marondera (hereinafter referred to as "the property"), including all developments and improvements on it."

Paragraph 8.5 of the declaration reads as follows:

> "Additionally, the agreement named a different entity, "the Extension of Church Assemblies of God," as the purchaser. Although the original intention was for the Agreement of Sale to relate solely to the extension of the property between the Plaintiff and the fifth Defendant, the executed Agreement instead purported to transfer ownership of the entire property to this unknown entity."

In Paragraph 8.8, the Plaintiff referred to itself as the rightful owner of the property. Mr. Majogo urged the court to refer to the matter in case number RHCH5359/23 where the Plaintiff pleaded two different positions. At first, the Plaintiff is alleged to have pleaded that it has a lease agreement with the fifth Defendant in respect of the property. It was further alleged that the Plaintiff sought amendment to its pleadings to the effect that it had an agreement of sale in respect of the same property. On this basis, Mr. Majogo urged the court to uphold this ground of exception. Mr. Magogo argued that the correct position is what was pleaded by the Plaintiff in Paragraph 7.2.

In my view, the nature of rights enjoyed by the Plaintiff in respect of the property is at the heart of the dispute between the Plaintiff and the Defendants. On this basis, there is need for the Plaintiff to clearly plead on this aspect. Where ownership has been referred to as pleaded in Paragraphs 8.5 and 8.8, it gives rise to an assumption that the holder of such rights is registered as the owner of the property concerned in terms of the Deeds Registries Act [*Chapter 20:05*]. Clearly, Paragraph 7.2 contradicts Paragraphs 8.5 and 8.8. On this basis, I am of the view that the Defendants will be forced to plead in darkness if this area is not clarified. In the circumstances, this ground of exception is upheld.

However, reference to RHCH5359/23 is of no consequence in an exception. Exception, unlike special plea, must be resolved through reference to the pleadings themselves. One does not have to go outside the pleadings to resolve the exception. Herbstein & Van Winsen,: The Civil Practice of the Supreme Courts of South Africa 5 ed Vol 1 at pp599-600, quoted with

approval in the case of *Nan Brooker* v *Mudhanda and Anor*[4], in explaining the essential differences between an exception and a special plea, articulated as follows:

> "The essential difference between a special plea and an exception is that in the case of the latter the excipient is confined to the four corners of the pleading. The defence raised on exception must appear from the declaration itself; the excipient must accept as correct the allegations contained in it and he may not introduce any fresh matter. Special pleas, on the other hand, do not appear *ex facie* the pleading. If they did, then the exception procedure would have to be followed. Special pleas have to be established by the introduction of fresh facts from outside the circumference of the pleading, and those facts have to be established by evidence in the usual way. Thus, as a general rule, the exception procedure is appropriate when the defect appears *ex facie* the pleading, whereas a special plea is appropriate when it is necessary to place facts before the court to show that there is a defect. The defence of prescription appears an exception to this rule for it has been held that the defence should be raised by way of special plea even when it appears ex the plaintiff's particulars of claim that the claim has prescribed, apparently because the plaintiff may wish to replicate a defence to the claim of prescription, for example an interruption."

In the premises, the court cannot refer to RHCH5359/23 to resolve this issue. Doing so would fly against established practice.

As a further ground of exception, the Defendants raised issues of non-joinder and misjoinder. On non-joinder, the Defendants argued that the entity called The Extension of Church Assemblies of God is not cited despite having direct interest in the matter. With respect to misjoinder, the Defendants argued that the second-fourth Defendants have unnecessarily been dragged to court as they have been alleged to have acted in a representative capacity.

Mr. Magogo submitted that the issue of misjoinder and non-joinder cannot be raised through exception. Reference was made to Rule 32. It is apparent that the question of non-joinder and misjoinder cannot be resolved without reference to extrinsic evidence. One has to answer the question of whether the entity called The Extension of Church Assemblies of God is actually non-existent. The Plaintiff alleged that the entity is not in existence while the Defendants did not clarify whether such entity is in existence. The interest of the second-fourth Defendants in such entity remains a mystery. This may only be resolved through extrinsic evidence. On this basis, this ground of exception is misplaced.

Further, the Defendants also contended that the claim for re-registration of the agreement in Plaintiff's favour is not sustainable. Mr. Majogo submitted that once an agreement has been

[4] SC5/18.

nullified, one cannot breathe life into such an agreement. The Plaintiff's position is that the agreement between the fifth Defendant and The Extension of Church Assemblies of God is unlawful. It further claimed that it must be declared a lawful party to the agreement thereby replacing The Extension of Church Assemblies of God. Whether or not the relief is competent will be resolved at trial through evidence. What remains a mystery is whether the Plaintiff had an agreement with the fifth Defendant prior to the 2023 agreement concluded between the fifth Defendant and The Extension of Church Assemblies of God. If that agreement was in existence, the claim for re-registration of such agreement may be competent subject to statutory requirements which shall be discussed later. If there was no such agreement prior to the 2023 agreement, the relief for re-registration of agreement is clearly incompetent. Our courts do not impose agreements upon parties. Agreements are a private arrangement by parties to such agreements. Imposing an agreement upon parties violates the freedom and sanctity of contract. Reference is made to the case of *Chiduku and Others* v *Chiduku*[5] where Mathonsi commented as follows:

> "The unyielding principle of sanctity of contracts confines the courts only to interpreting a contract and not creating one for the parties. It entails that the courts should respect the contract made by the parties and give effect to it. See *Alliance Insurance* v *Imperial Plastics (Pvt) Ltd & Another* SC 30/17 where the following passage in *Book* v *Davidson* 1988 (1) ZLR 365 (S) at 378G-379C was referred to :
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> "There is, however, another tenet of public policy, more venerable than any thus engrafted onto it under recent pressures, which is likewise in conflict with the ideal of freedom of trade. It is the sanctity of contracts' (*Rofley v Catterall Edwards & Goudre (Pty) Ltd* 1977 (4) SA 494 (N) at 504 – 505E)
>
> …
>
> 'If there is one thing which more than any other public policy requires, it is that men of full age and competent understanding shall have the utmost liberty of contracting, and that their contracts when entered into freely and voluntarily shall be held sacred and shall be enforced by courts of justice. Therefore you have this paramount public policy to consider that you are not lightly to interfere with this freedom of contract. (*Printing and Numeric Registering Co v Sampson* (1875) LR 19 Eq 462 at 465) …'
>
> 'To allow a person of mature age, and not imposed upon, to enter into a contract, to obtain the benefit of it, and then to repudiate it and the obligations which he has undertaken is, *prima facie* at all events, contrary to the interests of any and every country. (*E Underwood and Son Ltd v Barker* (1899) ICH 300 (CA) at 305)""

[5] SC56/24.

Given the lack of clarity on whether the Plaintiff had an agreement with the fifth Defendant prior to the 2023 agreement, this ground of exception must be upheld. Such clarification will enable the Defendants to plead in the correct picture of the Plaintiff's case. This lack of clarity will prejudice the Defendants in their defence.

Further, the fifth Defendant is a public entity which is required to operate within the four corners of the enabling statute i.e the Urban Councils Act [*Chapter 29:15*]. In terms of Section 152 of the Urban Councils Act, an urban local authority must observe certain procedures before the disposal of its land. Section 152 of the Urban Councils Act provides as follows:

> "152 Alienation of council land and reservation of land for State purposes
>
> (1) Subject to any rights which have been acquired by a miner of a registered mining location in terms of section 178 of the Mines and Minerals Act [Chapter 21:05], a council may, subject to section one hundred and fifty-three, sell, exchange, lease, donate or otherwise dispose of or permit the use of any land owned by the council after compliance has been made with this section.
>
> (2) Before selling, exchanging, leasing, donating or otherwise disposing of or permitting the use of any land owned by it the council shall, by notice published in two issues of a newspaper and posted at the office of the council, give notice—
>
> a) of its intention to do so, describing the land concerned and stating the object, terms and conditions of the proposed sale, exchange, lease, donation, disposition or grant of permission of use; and
> b) that a copy of the proposal is open for inspection during office hours at the office of the council for a period of twenty-one days from the date of the last publication of the notice in a newspaper; and
> c) that any person who objects to the proposal may lodge his objection with the town clerk within the period of twenty-one days referred to in paragraph (b).
>
> (3) The council shall submit a copy of the notice referred to in subsection (2) to the Minister not later than the date of the first publication of that notice in a newspaper.
>
> (4) A council may not, subject to section one hundred and fifty-three, sell, exchange, lease, donate or otherwise dispose of or permit the use of any land owned by the council which lies within an area for which—
>
> a) there is no approved town planning scheme, unless —
>  (i) a copy of the proposal and of the notice published in terms of subsection (2), together with any objections which have been lodged and the comments of the council on such objections, have been transmitted to the Minister; and
>  (ii) the Minister has consented to the sale, exchange, lease, donation or other disposition or permission to use, as the case may be :

Provided that the Minister shall not consent unless he is satisfied that an adequate area of land, suitable for the purpose, has, where necessary, been reserved for State purposes or for postal and telecommunication services;

or

b) there is an approved town planning scheme, unless —
   (i) the period of twenty-one days referred to in subsection (2) has expired; and
   (ii) if any objections have been lodged they have been considered by the council.

(5) Notwithstanding subsection (2), modifications or amendments to the proposal advertised in terms of that subsection may be made if they are of a minor nature and are not opposed to the true spirit and intent of such proposal—

(a) where the consent of the Minister is required in terms of paragraph (a) of subsection (4), by the Minister after consultation with the council; or
(b) by the council;

without re-advertising the proposal.

(6) Where, in granting his consent in terms of paragraph (a) of subsection (4) the Minister has imposed any terms or conditions, the council shall ensure that those terms and conditions are observed in any contract, lease or other instrument entered into in connection with the sale, exchange, lease, donation or other disposition of or permission to use the land, as the case may be.

(7) Any land reserved for State purposes, whether in terms of an approved town planning scheme or in terms of the approval of the Minister in terms of subparagraph (ii) of paragraph (a) of subsection (4), which is required for the purposes of a police station or school shall, upon the sale, exchange, lease, donation or other disposition of land in terms of this section and upon request of the Minister, at the cost of the council, be transferred to the President and the council shall not be entitled to any payment or compensation for any such land so transferred but shall be entitled to

recover the costs incurred by the council in surveying such land:

Provided that—

(i) where the reservation is situated on township land granted to the council in trust for the inhabitants of the council area in terms of a deed which stipulates that a certain percentage of such township land shall be surrendered free of cost for State purposes, any land transferred to the President in terms of this subsection shall, if the balance of the percentage of land remaining is equal to or greater than the land transferred, be deducted from that percentage;
(ii) the exhaustion of the percentage referred to in proviso (i) shall not prevent the operation of this subsection.

(8) If land which has been acquired by the State in terms of subsection (7) or any portion thereof—

(a) is to be used for purposes other than for a police station or school, there shall be paid to the council from moneys appropriated for the purpose by Act of Parliament an amount equal to the value, calculated on the basis set out in subsection (1) of section two hundred and fifty, of the land or portion thereof, as the case may be, as at the date on which it was acquired by the State:

> Provided that, if the land was deducted from the percentage referred to in proviso (i) to subsection (7), no payment shall be made to the council;
>
> (b) is not to be used for State purposes, the land or portion thereof, as the case may be, shall be transferred free of charge to the council and any costs incurred in such transfer shall be paid from moneys appropriated for the purpose by Act of Parliament:
>
> Provided that, if the land was deducted from the percentage referred to in proviso (i) to subsection (7), the percentage shall be appropriately restored."

In the circumstances, this court may find it difficult if not impossible to impose an agreement between the Plaintiff and the fifth Defendant in the absence of necessary facts that the appropriate statutory procedures were correctly followed. This may encourage illegality if the correct procedures were not adhered to.

The Defendants, in their last ground for exception, contended that the claim for eviction against themselves is untenable given the lack of clarity of the Plaintiff's interest in respect of the property. I am confident that this issue will be resolved through evidence and potential amendments which may be made to the summons and declaration on the issue of nature of the Plaintiff's interest in the property. Any other outstanding issue on this aspect will be resolved through evidence at trial. In the premises, this ground for exception is hereby dismissed.

Mr. Majogo, through oral submissions, prayed for the upholding of the exception and consequent dismissal of the Plaintiff's claim. However, a perusal of the exception and the Defendants' heads of argument will reveal that the Defendants never prayed for the dismissal of the Plaintiff's claim. This was only introduced through oral submissions. A dismissal is a drastic remedy which can only be done where the court has considered the merits of the matter. Reference is made to the case of *Nhari* v *Mugabe* [6] where the court held that:

> "It is a contradiction in terms to dismiss a matter on the twin bases that it is not urgent and that the applicant has no *locus standi* for the latter basis indicates that a decision on the merits of the application has been made in which event the applicant is barred from placing the matter on the ordinary roll for determination. The effect of the dismissal on the latter basis is that the applicant is put out of court and is deprived of his right to have the matter properly ventilated in a court application or trial. Where, however, the matter is struck off the roll for lack of urgency, the applicant, if so advised, may place the matter on the ordinary roll for hearing." (at pp 8 – 9 of the judgment)"

[6] SC161/20.

In *casu,* the court did not deal with the merits of the Plaintiff's claim. The court was only invited to deal with exception. The exception does not cover the entire merits of the Plaintiff's claim. Where the exception is upheld, the Plaintiff's claim may be struck from the roll. This will give the Plaintiff an opportunity to approach the court with rectified pleadings. Where the exception does not go to the root of the matter, the court does not have to strike the pleadings from the roll. The Plaintiff may, if he or she so wishes, amend the summons and declaration after the exception has been upheld. Where the matter had not prescribed, the Plaintiff may also elect to withdraw the claim and institute a fresh claim. In the case of *China Africa Cotton Zimbabwe (Pvt) Ltd* v *Quton Seed Company (Pvt) Ltd*, CHAREWA J held that:

> "It is trite that summons must disclose a cause of action otherwise it is so bad in law that it cannot be condoned and is thus expiable[7]. It is further trite that summons which does not disclose a cause of action is a nullity and cannot be amended.[8] The only cure for such summons is to withdraw it and start afresh.
>
> In addition, the courts have also consistently held that the object of any pleading is to state in clear and concise terms the facts upon which a party relies in order for each party to come to trial well prepared to meet the case it must answer and to enable the court to adjudicate thereon. In that regard, the courts invariably address the questions which I may generally express as follows:
>
> 1. Is a litigant sufficiently aware of the details of the claim?
> 2. Is the legal basis of such claim adequately articulated?
> 3. Is the relief clear?
>
> In the result, where the summons does not contain sufficient facts on the details of the claim, or where the relief sought is not sufficiently clear, the courts generally allow amendments, as this does not go to the root of the matter. Where however, the legal basis of the claim is completely absent, an exception is generally upheld as without a *causa*, a claim is dead in the water[9]. Exceptionally, where a reading of the summons together with the declaration discloses the *causa* sufficiently, particularly where the summons specifically states that the claim is more fully amplified in the declaration, the courts have taken the robust approach to allow amendment of the cause of action."

In my view, the grounds for exception which I have upheld are issues which may be cured by appropriate amendments. Striking the Plaintiff's claim from the roll is a drastic remedy which is not appropriate in the circumstances.

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[7] *Matanhire v BP & Shell Marketing Services (Pvt) Ltd* 2004 (2) ZLR 147 (S)
[8] See also *Business Equipment Corp v Baines Imaging Group* 2002 (2) ZLR 354 (S).
[9] See *Muchakata v Netherburn Mine* 1996 (1) ZLR 153(S). See also *Taruona v Zvarevadza & Ors* HH-87-12 and *Tobacco Processors (Pvt) Ltd v Bak Storage (Pvt) Ltd & Ors* HH-49-12

Mr. Magogo submitted that the issues raised through exception may be addressed through request for further particulars, a procedure outlined in Rule 42(1)(d). In my view, the issues which are subject of the Defendants' complaint are excipiable issues. The Defendants will be prejudiced if the issues highlighted in this judgment are not rectified. The Plaintiff's cause of action lacks sufficient particularity in many respects. On this basis, the Defendants' exception ought to be partially upheld to the extent specified in this judgment.

On the question of costs, costs ordinarily follow the outcome. The Plaintiff was warned in advance and ignored the warning. For this reason, the Plaintiff must bear the consequence. In the circumstances, it is ordered as follows:

A. The first-fourth Defendants' grounds for exception be and are hereby partially upheld as highlighted in this judgment.
B. The Plaintiff's be and is hereby ordered to pay first-fourth Defendants' costs of suit.

**DEME J ……**

*Maposa Mahlangu Attorneys* Plaintiff's Legal Practitioners.
*Mtetwa & Nyambirai* first -fourth Defendants' Legal Practitioners.